
MEMORANDUM

TO: Mayor Patrick Collins, and City Council
FROM: Adele Bartel, Public Works Staff Engineer
DATE: January 30, 2026
SUBJECT: Contract Modification #3 to Contract #7977 between the City of Cheyenne and Simon Contractors for the Public Works Improvements project

Please find the attached Contract Modification between the City of Cheyenne and Simon Contractors for the repaving and concrete services of the Public Works Improvements Project.

Over the last two years while this project has been in progress, extensive unforeseen problems in subgrade have been found and additional concrete failures in areas outside the scope of the original project have occurred.

The work that this modification includes, without limitation:

- I. City Hall
 - a. Replacement of approximately (8) concrete slabs around the municipal building and its courtyard.
 - b. Replacement of approximately 35 linear feet of curb and gutter.
- II. Fleet Maintenance Facility
 - a. Replacement of 4" sidewalk along the north side of the building.
- III. Transfer Station
 - a. Replacement of (4) 8" concrete slabs located near the west side of the building.
- IV. Street & Alley
 - a. Replacement of 8" concrete pad in front of the ice slicer building.
 - b. Replacement of (4) steel bollards in front of ice slicer building.
 - c. Addition of an IT communication pole.
 - d. Over-excavation for unforeseen soft spot repair.

The pricing of these additional items accounts for an 8% cost escalation due to inflation over the past two years and additional mobilization costs, as stated by Simon in the attached document.

The total additional cost proposed by this Contract Modification is \$266,406.49

Project Completion is scheduled for June 2026.

Funding: 020-26-2615-40-21601 - \$48,095.00
101-14-1415-40-43501 - \$19,379.00
023-14-1417-43-43501 - \$32,637.00
020-26-2616-42-43501 - \$166,295

CITY OF CHEYENNE
CONTRACT MODIFICATION

APPROVED as to form only:
By David Hopkinson at 1:25 pm, Feb 03 2026

Contract Modification: #3
Project: Public Works Improvements Project
Project Number: Contract # 7977
Contractor: Simon Contractors
Date Prepared: 1/26/2025

The above referenced contract is amended or modified as set forth in the following and these amendments and modifications of the plans and specifications are agreed to by the parties. All other aspects of the original agreement remain unchanged and in full force and effect.

I. Description of Changes

Additional areas of concrete failure have emerged since the start of this project. This modification will add the replacement of the following:

- City Hall: Sidewalk concrete and curb and gutter in various places.
- Fleet Maintenance: Entire sidewalk along the north side of the building.
- Transfer Station: One area of concrete driveway on the west side of the building.
- Street & Alley: Extended area of concrete pavement in front of the Ice Slicer building, 4 additional steel bollards to replace existing bollards, and an IT communication pole.

The additional work is further detailed in Exhibit A attached hereto and incorporated by reference.

II. New Contract Items

Item No.	Item	Quantity	Unit	Unit Price	Amount
100	Mobilization	1.00	LS	\$3,500.00	\$3,500.00
110	Remove Existing Conc. Sidewalk	153.00	SY	\$35.00	\$5,355.00
120	Regrade/Subgrade Prep	163.00	SY	\$6.00	\$978.00
130	Crushed Base – Grading ‘W’ - 4”	163.00	SY	\$44.00	\$7,172.00
140	4” Conc. Sidewalk	153.00	SY	\$130.00	\$19,890.00
150	Conc. Curb & Gutter Remove and Replace	35.00	LF	\$320.00	\$11,200.00
	CITY HALL				\$48,095.00
200	Mobilization	1.00	LS	\$3,500.00	\$3,500.00
210	Remove Existing Conc. Sidewalk	67.00	SY	\$60.00	\$4,020.00
220	Regrade/Subgrade Prep – 6”	67.00	SY	\$25.00	\$1,675.00
230	Crushed Base – Grading ‘W’ - 4”	67.00	SY	\$42.00	\$2,814.00
240	4” Conc. Sidewalk	67.00	SY	\$110.00	\$7,370.00
	FLEET MAINTENANCE				\$19,379.00
300	Mobilization	1.00	LS	\$3,500.00	\$3,500.00
310	Remove Existing Conc. Pavement – 8”	47.00	SY	\$85.00	\$3,995.00
320	Unclassified Excavation Below Subgrade – 12”	1.70	CY	\$2,210.00	\$3,757.00
330	Regrade/Subgrade Prep – 6”	47.00	SY	\$75.00	\$3,525.00
340	Crushed Base – Grading ‘W’ - 4”	47.00	SY	\$50.00	\$2,350.00
350	8” Conc. Pavement	47.00	SY	\$330.00	\$15,510.00
	TRANSFER STATION				\$32,637.00
400	Mobilization	1.00	LS	\$2,800.00	\$2,800.00
410	Unclassified Excavation Below Subgrade – 12”	78.00	CY	\$150.00	\$11,700.00
420	Regrade/Subgrade Prep – 6”	233.30	SY	\$12.00	\$2,799.60
430	Crushed Base – Grading ‘W’ - 4”	233.30	SY	\$30.00	\$6,999.00
440	8” Conc. Pavement	233.30	SY	\$135.00	\$31,495.50
450	8” Steel Bollards	4.00	EA	\$1,500.00	\$6,000.00
460	Remove Asphalt, Install Communication Pole	225.50	LF	\$77.05	\$17,374.78
470	Over-Excavation and Base for Soft Spot Repair	1.00	LS	\$87,126.61	\$87,126.61
	STREET & ALLEY				\$166,295.49
TOTAL AMOUNT					\$266,406.49

III. Schedule

No changes to the completion date.

IV. Summary

Original Contract Amount	\$2,377,017.25
Previous Modifications	\$49,962.55
Contract Amount Prior to this Modification.....	\$2,426,979.80
This Modification	\$266,406.49
New Contract Amount	\$2,693,386.29

V. GL Account Information

If requesting a modification to the contract price, please list GL account # to cover the balance of this modification (if using more than (1) GL account, list the dollar amount for each respective account):

GL: 020-26-2615-40-21601 - \$48,095.00
101-14-1415-40-43501 - \$19,379.00
023-14-1417-43-43501 - \$32,637.00
020-26-2616-42-43501 - \$166,295.49

VI. Approvals:

City Project Manager: _____ Date: _____

Consultant/Contractor: _____ Date: _____

City of Cheyenne _____ DATE: _____

Mayor Patrick Collins / ATTEST: City Clerk Kylie Soden

CENTRAL REGION
6215 Clear Creek Pkwy
Cheyenne, WY 82007
TEL 307.632.7900
FAX 307.632.1088



05/21/2025

City of Cheyenne

2101 Oneil Ave, Cheyenne, WY 82001

Attn: Adele Bartel

Re: Change Order and FY26 Escalation

We have prepared a detailed cost estimate for the additional work requested by the City of Cheyenne. Please note that each site carries a mobilization fee, which includes required testing and traffic control services. Our team has completed comprehensive field measurements in accordance with the plans provided.

Furthermore, the estimate reflects an 8% escalation and additional mobilization costs in FY26 for the street and alley locations, due to the presence of another contract in our project area and scope.

We anticipate commencing our FY26 construction season in early to mid-April. Please consider this timeline when preparing the contract modification and allocating additional contract time as necessary.

Kindly respond at your earliest convenience so we can schedule this work for next year.

Respectfully,

Robert Esquivel

Project Engineer III